

House File 440

H-1099

1 Amend House File 440 as follows:

2 1. Page 1, after line 2 by inserting:

3 <Sec. _____. Section 262.1, Code 2025, is amended to read as
4 follows:

5 **262.1 Membership.**

6 The state board of regents consists of nine members, eight
7 of whom shall be ~~selected from the state at large solely with~~
8 ~~regard to their qualifications and fitness to discharge the~~
9 ~~duties of the office~~ elected pursuant to section 262.3. The
10 ninth member shall be appointed by the elected members of the
11 board and shall be a student enrolled on a full-time basis in
12 good standing at either the graduate or undergraduate level at
13 one of the institutions listed in section 262.7, subsection 1,
14 2, or 3, at the time of the member's appointment. Not more than
15 five members shall be of the same political party. The elected
16 members of the state board of regents may, by a majority vote
17 of those members, remove or suspend the ninth member.

18 Sec. _____. Section 262.2, Code 2025, is amended to read as
19 follows:

20 **262.2 Appointment — term of office.**

21 ~~The members shall be appointed by the governor subject to~~
22 ~~confirmation by the senate. Prior to appointing the ninth~~
23 ~~member as specified in [section 262.1](#), the governor shall~~
24 ~~consult with the appropriate student body government at the~~
25 ~~institution at which the proposed appointee is enrolled. The~~
26 ~~term of each member of the board shall be for six years,~~
27 except as provided in section 262.3, unless the ninth member,
28 appointed in accordance with [section 262.1](#), graduates or is
29 no longer enrolled at an institution of higher education
30 under the board's control, at which time the term of the
31 ninth member shall expire one year from the date on which the
32 member graduates or is no longer enrolled in an institution
33 of higher education under the board's control. However, if
34 within that year the ninth member reenrolls in any institution
35 of higher education under the board's control on a full-time

1 basis and is a student in good standing at either the graduate
2 or undergraduate level, the term of the ninth member shall
3 continue in effect. ~~The terms of three members of the board~~
4 ~~shall begin and expire in each odd-numbered year as provided~~
5 ~~in section 69.19.~~

6 Sec. _____. NEW SECTION. 262.3 Election of certain members
7 — vacancies.

8 1. Of the eight elective members of the board, two shall
9 be elected by the registered voters of each of the three
10 congressional districts in which is located an institution of
11 higher learning governed by the board, one shall be elected
12 from the remaining congressional district, and one shall be
13 elected on a statewide basis. Members of the board shall be
14 elected on a nonpartisan basis at the regular school election
15 under section 277.1 for staggered six-year terms, with terms
16 commencing on the first day of January that is not a Sunday or
17 holiday following their election. Any eligible elector who is
18 a resident of this state is entitled to elective membership
19 on the board, except that a member elected by the voters of a
20 congressional district must be a resident of that congressional
21 district. A vacancy in an elected position on the board shall
22 be filled by the chairperson of the board for the unexpired
23 balance of the term as provided in section 69.12 until the next
24 succeeding regular election for school districts.

25 2. a. At each regular school election, a successor shall
26 be chosen for each board member whose term will expire in the
27 succeeding January. Nominations of candidates shall be made
28 by petition in accordance with chapter 45. Nominations of
29 candidates for the statewide elected member shall be signed by
30 at least three hundred eligible electors residing in the state.
31 Nominations of all other candidates shall be signed by at least
32 three hundred eligible electors residing in the congressional
33 district. The petition form shall be furnished by the county
34 commissioner of elections. Every candidate shall file with
35 the nomination papers an affidavit stating the candidate's

1 name, the candidate's residence, that the person is a candidate
2 and is eligible for board membership, and that if elected the
3 candidate will qualify for the office. The affidavit shall
4 also state that the candidate is aware that the candidate is
5 disqualified from holding office if the candidate has been
6 convicted of an infamous crime and the candidate's rights have
7 not been restored by the governor or by the president of the
8 United States.

9 **b.** The signed petitions shall be filed with the county
10 commissioner of elections not later than 5:00 p.m. on the
11 sixty-ninth day before the regular election held pursuant
12 to section 277.1. The votes for board membership shall be
13 canvassed in the same manner as the votes for state officers,
14 and the returns shall be certified to the state commissioner of
15 elections. A plurality is sufficient to elect members, and a
16 primary election for the office shall not be held.

17 **3.** As used in this section, "*congressional district*"
18 means those districts established following the 2020 federal
19 decennial census.>

20 **2.** Page 3, after line 9 by inserting:

21 <Sec. _____. REPEAL. Sections 262.4, 262.5, and 262.6, Code
22 2025, are repealed.

23 Sec. _____. TRANSITION PROVISIONS.

24 **1.** Membership terms of all regents board members on the
25 effective date of this Act shall expire on December 31, 2027.

26 **2. a.** At the regular election for school districts to be
27 held in 2027, and at the regular election for school districts
28 immediately preceding the expiration of the member's term, one
29 member each shall be elected as follows:

30 (1) Statewide, for a full term.

31 (2) By the registered voters of the third congressional
32 district, for a full term.

33 (3) By the registered voters of the first congressional
34 district, for an initial four-year term.

35 (4) By the registered voters of the second congressional

1 district, for an initial four-year term.

2 (5) By the registered voters of the fourth congressional
3 district, for an initial four-year term.

4 (6) By the registered voters of the first congressional
5 district, for an initial two-year term.

6 (7) By the registered voters of the second congressional
7 district, for an initial two-year term.

8 (8) By the registered voters of the fourth congressional
9 district, for an initial two-year term.>

10 3. Title page, line 3, after <institutions> by inserting
11 <, the membership of the board of regents, and including
12 transition provisions>

13 4. By renumbering as necessary.

JACOBY of Johnson